

24STCV26008 24STCV26008

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-07-29

Motion: DEFENDANTS GRAND HOPE PARK, LLC AND CIM GROUP, LLC'S MOTION TO COMPEL PLAINTIFF TO AN INDEPENDENT MENTAL EXAMINATION

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Case Number: 24STCV26008 Hearing Date: July 29, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

LUIS

RUIZ, an individual,

Plaintiff,

vs.

CIM GRAND HOPE PARK, LLC; CIM GROUP; GRAND HOPE PARK, LLC;
VA8 888 HOPE, LLC; WFM FACILITIES MANAGEMENT INC.; and DOES 1-50 inclusive,

Defendants.

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CASE

NO.: 24STCV26008

[TENTATIVE] ORDER RE:

DEFENDANTS GRAND HOPE PARK,
LLC AND CIM GROUP, LLC'S MOTION TO
COMPEL PLAINTIFF TO AN INDEPENDENT MENTAL EXAMINATION

Dept. 733

8:30 a.m.

July 29, 2026

I.

INTRODUCTION

On October 7,
2024, Plaintiff Luis Ruiz ("Plaintiff") filed a complaint against Defendants

CIM Grand Hope Park LLC, CIM Group,
Grand Hope Park, LLC, VA8 888 Hope, LLC, and WFM Facilities Management Inc.
("Defendants") alleging a cause of action for Negligence.

Plaintiff alleges
that Defendants failed to provide safe flooring in the subject location as to
create a dangerous and hazardous condition. (Compl., ¶ 9.)

On

May 27, 2026, Defendants Grand Hope Park LLC and CIM Group LLC ("Moving Parties") filed the instant motion to compel the mental examination of Plaintiff.

On

July 16, 2026, Plaintiff filed an opposition.

On

July 22, 2026, Moving Parties filed a reply.

II.

LEGAL STANDARD

A court order is required to obtain a party's mental examination. (Code Civ. Proc. § 2032.310(a).) Such an order may be made only after notice and hearing, and for "good cause shown." (Code Civ. Proc., §§ 2032.310(c), 2032.320(a).)

The motion must state the time, place, identity and specialty of the examiner, and the "manner, conditions, scope and nature of the examination." (Code Civ. Proc., § 2032.310(b).) "An order granting a physical or mental examination shall specify the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination." (Code Civ. Proc., § 2032.320(d).) "The court is to describe in detail who will conduct the examination, where and when it will be conducted, the conditions, scope and nature of the examination, and the diagnostic tests and procedures to be employed. The way to describe these 'diagnostic tests and procedures'—fully and in detail—is to list them by name." (Carpenter v. Superior Court (2006) 141 Cal.App.4th 249, 260.)

The moving party must support their motion with a meet and confer declaration. (Code Civ. Proc., § 2032.310(b).) A meet and confer declaration must state facts "showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040.)

The examination will be limited to whatever condition is

"in controversy" in the action. (Code Civ. Proc., § 2032.020(a).)

This means that the specific injury or subject of the litigation must be directly invoked by the examination. (See *Roberts v. Superior Court* (1973) 9 Cal.3d 330, 337.) By alleging a causal link between the emotional distress and the defendant's conduct, a plaintiff "implicitly claims it was not caused by a preexisting mental condition, thereby raising the question of alternative sources for the distress." (Vinson v. Superior Court (1987) 43 Cal.3d 833, 840.) However, a mental examination is only appropriate where the plaintiff alleges continuing emotional distress. (Doyle v. Sup. Ct. (Caldwell) (1996) 50 Cal.App.4th 1878, 1886-1887.) "While a plaintiff may place his mental state in controversy by a general allegation of severe emotional distress, the opposing party may not require him to undergo psychiatric testing solely on the basis of speculation that something of interest may surface." (Vinson, *supra*, 43 Cal.3d at p. 840.)

III.

DISCUSSION

Moving Parties move to compel

Plaintiff to submit to a mental examination by Earl C.

Thorndyke, Ph.D. ("Dr. Thorndyke") at 11835 W. Olympic Blvd., Suite 1270E, Los Angeles, CA 90064, on August 11, 2026, commencing at 10:00 a.m. In opposition, Plaintiff does not contest undergoing the examination. The only dispute is what happens to the raw test data and audio recording the examination generates: Defendants ask that these be transmitted to a licensed psychologist designated by Plaintiff, while Plaintiff asks that they be turned over to his counsel following the implementation of a proposed protective order. (Goodheart Decl., Ex. A.)

In *Carpenter v. Superior Ct.* (2006) 141 Cal.App.4th 249, 271, the Court considered the plaintiff's contention that he should be provided with a copy of the test questions and answers after the mental examination. The Court stated that "[w]hile there is no express statutory authority for Carpenter's position, neither is there statutory authority precluding a trial court, in its discretion, from ordering the disclosure of the written test questions and answers." (Ibid.)

In Randy's

Trucking, Inc. v. Superior Court (2023) 91 Cal.App.5th 818, 837-838 (Randy's),

the Court dealt with a similar issue and considered the question of whether the trial abused its discretion in ordering transmission of the raw data and audio recording to plaintiffs' counsel. The Randy's Court found that the trial court did not abuse its discretion "in ordering transmission of raw data and audio recording to plaintiffs' attorney subject to a protective order, as plaintiffs demonstrated a need for the materials and the protective order would address the concerns about test security and integrity." (Id. at p. 842.) Specifically, the Randy's Court found that the defendants' expert "did not state that a protective order would not satisfy her ethical concerns," nor addressed how "testing integrity is meaningfully compromised by the potential for some attorney recall." (Id. at p. 841.)

Here,

Defendants' expert declares that "compliance with a court order to disclose those materials to counsel would expose me to potential disciplinary action, including revocation of my license, because it would force me to permit persons without professional interests to the tests who may not safeguard their use, in violation of CCR, title 16 section 1396.3." (Thorndyke Decl., ¶ 7, Ex. 8 [APA Ethics Code].) Furthermore, "disclosure of testing materials to non-psychologists would potentially expose [him] to liability to [psychological test publisher Wester Psychological Services] for violation of the contractual and licensing obligations under which those instruments are distributed." (Id. ¶ 10.)

Defendants' expert

also explains that "[a] protective order does not solve the ethical problem created by transmitting raw test data and audio recordings to non-psychologists" because "once an attorney or non-psychologist sees the raw test data, testing stimuli, and the audio recording of the testing procedure, that knowledge cannot be erased regardless of the terms of any protective order. A protective order cannot guarantee that test materials will not be forwarded, photographed, uploaded, or otherwise disseminated. And once test stimuli and protocols are exposed to nonpsychologists, the integrity of those tests for all future examinees is permanently compromised." (Id. ¶ 13.) Also, "there is a significant risk that attorneys and their staff who review raw test data and testing stimuli will, intentionally or otherwise, coach their clients on how to approach neuropsychological testing in future examinations, corrupting the validity of any future testing in this or any related proceeding." (Id. ¶ 13.)

However, these are precisely the same concerns that the Randy's Court found insufficient to overcome dissemination pursuant to a protective order. The expert in Randy's similarly expressed the concerns that "(1) the transfer of testing materials to plaintiffs' attorney is an ethical and professional violation even with a protective order; (2) protective orders do not erase knowledge an attorney may acquire concerning the test, which can be used to educate future clients about the test; and (3) the harm caused by a single violation of the protective order, whether intentional or inadvertent, outweighs the necessity of providing the testing materials to a nonpsychologist." (Randy's, *supra*, 91 Cal.App.5th at p. 841.)

In response, the Randy's Court stated that "[t]here is no evidence that attorneys regularly violate protective orders, including those concerning psychological or neuropsychological testing materials." (Id. at p. 841.) Specifically, as to the concern that dissemination "raises the risk that 'motivated parties will coach and prepare examinees for testing in advance, specifically to influence the test results,'" the Randy's Court concluded that "that risk is not unique to psychological testing" and "defendants do not show testing integrity is meaningfully compromised by the potential for some attorney recall." (Ibid.) As to the concern that "there is currently no mechanism in place to monitor compliance with protective order," Randy's particularly noted that a protective order in such a situation "can be enforced against plaintiffs' attorney if he or his staff were to violate it by contempt or other sanctions." (Id. at p. 841.)

Like in Randy's, Defendant nor its expert, Dr. Thorndyke, sufficiently explain how the implementation of a protective order "would not adequately address [Dr. Thorndyke's] concerns about test security." (Id. at p. 842.) The Court does not find that Dr. Thorndyke has adequately provided why his ethical obligations would be breached if made to produce the testing data subject to a carefully-drafted protective order. The Court thus orders the parties to meet and confer regarding the specific terms of such a protective order that adequately addresses each party's concerns. (See *Ibarra v. Superior Ct.* (2013) 217 Cal. App. 4th 695, 707.)

As the Randy's Court provides:

“Without the raw data and audio recording, plaintiff[] cannot effectively scrutinize the way the data was collected, determine if there are discrepancies, and cross-examine the neuropsychologist on the basis and reasons for the neuropsychologist's opinion.” (Randy's, supra, 91 Cal.App.5th at p. 838.)

IV.

CONCLUSION

Defendant's motion

is GRANTED to the extent that the IME is ordered to be conducted. The Court orders the parties to further meet and confer regarding the implementation of a protective order regarding the dissemination of the raw data following the examination.

Dated this 29th
day of July 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court